

Syllabus

and it is available for conduct of prosecutors that is “intimately associated with the judicial phase of the criminal process.” *Imbler v. Pachtman*, 424 U. S. 409, 430. Pp. 267–271.

(b) Acts undertaken by a prosecutor in preparing for the initiation of judicial proceedings or for trial, and which occur in the course of his role as an advocate for the State, are entitled to the protections of absolute immunity. However, in endeavoring to determine whether the bootprint had been made by Buckley, respondents were acting not as advocates but as investigators searching for clues and corroboration that might give them probable cause to recommend an arrest. Such activities were not immune from liability at common law. If performed by police officers and detectives, such actions would be entitled to only qualified immunity; the same immunity applies to prosecutors performing those actions. Convening a grand jury to consider the evidence their work produced does not retroactively transform that work from the administrative into the prosecutorial. Pp. 271–276.

(c) Fitzsimmons’ statements to the media also are not entitled to absolute immunity. There was no common-law immunity for prosecutor’s out-of-court statements to the press, and, under *Imbler*, such comments have no functional tie to the judicial process just because they are made by a prosecutor. Nor do policy considerations support extending absolute immunity to press statements, since this Court has no license to establish immunities from §1983 actions in the interests of what it judges to be sound public policy, and since the presumption is that qualified, rather than absolute, immunity is sufficient to protect government officials in the exercise of their duties. Pp. 276–278.

952 F. 2d 965, reversed and remanded.

STEVENS, J., delivered the opinion for a unanimous Court with respect to Parts I, II, III, and IV–B, and the opinion of the Court with respect to Parts IV–A and V, in which BLACKMUN, O’CONNOR, SCALIA, and THOMAS, JJ., joined. SCALIA, J., filed a concurring opinion, *post*, p. 279. KENNEDY, J., filed an opinion concurring in part and dissenting in part, in which REHNQUIST, C. J., and WHITE and SOUTER, JJ., joined, *post*, p. 282.

G. Flint Taylor argued the cause for petitioner. With him on the briefs was *John L. Stainthorp*.

James G. Sotos argued the cause and filed a brief for respondents.

Jeffrey P. Minear argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief